

24NNCV00806 24NNCV00806

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-18

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Case Number: 24NNCV00806 Hearing Date: September 18, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 18, 2026

motionS TO COMPEL FURTHER
RESPONSES

Los

Angeles Superior Court Case # 24NNCV00806

MP: Plaintiffs

Debra Biane and Gerald Biane

RP: Defendant Universal City Studios, LLC

NOTICE:

The Court is not requesting oral argument on this
matter. Unless the

Court directs argument in the Tentative Ruling, no argument is required. The tentative ruling will become the ruling of the
court if no

argument is received.

ALLEGATIONS:

Debra Biane, Gerald Biane, Josh Taylorson, and Sami-Joh Goldberg (collectively "Plaintiffs") allege that, on April 7, 2022, they were visitors of Universal City Studios LLC's ("Defendant") amusement park. Plaintiffs allege that a malfunction in the "Harry Potter and the Forbidden Journey" ride caused the ride to stall, trapping Plaintiffs for approximately one hour. Plaintiffs allege they sustained serious injury due to being trapped on the ride.

The Second Amended Complaint ("SAC"), filed February 23, 2026, alleges: (1) Premises Liability; (2) Negligence; (3) Common Carrier Liability; (4) Negligent Infliction of Emotional Distress; and (5) Loss of Consortium.

On April 3, 2026, Plaintiffs Sami-Joh Goldberg and Josh Taylorson dismissed the complaint with prejudice. As such, the remaining Plaintiffs are Debra Biane and Gerald Biane.

MOTIONS ON CALENDAR:

There are eight discovery motions on calendar. On May 21, 2026, Plaintiffs Debra Biane and Gerald Biane each filed four motions to compel Defendant's further responses to: (1) Form Interrogatories, set one ("FROG"); (2) Special Interrogatories, set one ("SROG"); (3) Requests for Production of Documents, set one ("RPD"); and (4) Requests for Admission, set one ("RFA"). On September 8, 2026, Defendant filed oppositions. On September 11, 2026, Plaintiffs filed replies.

LEGAL STANDARD:

A motion to compel further interrogatory responses may be brought based on: (1) answers that are evasive or incomplete, (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response, or (3) unmerited or overly generalized objections. (C.C.P. §2030.300(a).)

A motion to compel further RPD responses may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (C.C.P. § 2031.310(a).) A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (C.C.P. § 2031.310(b)(1).) "Good cause" is shown by "a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224.)

A motion to compel further RFA responses may be brought based on: (1) an evasive or incomplete answer; or (2) unmerited or overly generalized objections.) (C.C.P. § 2033.310(a).)

A motion to compel further must be accompanied by a meet and confer declaration. (C.C.P. §§ 2030.300(b)(1), 2031.310(b)(1), 2033.290(b)(1).) Additionally, the motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. §§ 2030.300(c), 2031.310(c), 2033.310(c).)

ANALYSIS:

A.

FROG

Biane Plaintiffs move to compel Defendant's further responses to FROG Nos. 1.1, 3.6, 3.7, 4.1, 12.1-12.7, 15.1, 16.10, and 17.1. The Court will consider the motions together as they involve essentially identical requests.

On July 7, 2026, the Court held an Informal Discovery Conference ("IDC") and Defendant agreed to provide supplemental discovery responses no later than July 24, 2026. (July 7, 2026 Minute Order at p.1.)

In opposition, Defendant

represents that, following substitution of counsel and the IDC, it served substantive amended and supplemental responses to Biane Plaintiffs' FROGs on July 28, 2026. (See Caro Decl., ¶16, Ex. A.) The responses were unverified as attached, but Biane Plaintiffs state in their replies that verifications were provided on September 4, 2026.

Biane Plaintiffs argue that the motions are not mooted by the supplemental responses because the Court should consider the motions at the time they were filed or, if considering Defendant's supplemental responses, grant the motions for responses' deficiencies and impose sanctions.

The motions to compel Defendant's further responses to each of the Biane Plaintiffs' FROGs are denied as supplemental responses were provided. If Biane Plaintiffs still find the discovery responses deficient, the parties are ordered to cooperate and engage in good faith meet and confer efforts telephonically or in person.

The parties are also advised given that the Court has already held an Informal Discovery Conference on this matter and there has been considerable ongoing discovery disputes, the Court may find necessity to refer the matter to a discovery referee per the rules of court at the expense of the parties.

B.

SROG, RPD, and RFA

Biane Plaintiffs move to compel Defendant's further responses to SROG Nos. 1-137, RPD Nos. 1-87, and RFA Nos. 12-18, 41-44, and 49-51.

For the same reasons discussed above, the Court denies the motions to compel Defendant's further verified responses to the SROGs, RPDs, and RFAs in light of the verified, supplemental responses.

C.

Sanctions

Biane Plaintiffs seek \$2,210 in sanctions per FROG motion against Defendant and its counsel of record (= [2.3 hours for the motion] + [2 anticipated hours to review and reply to the opposition, and attend the hearing] at \$500/hour, plus \$60 filing fees).
(Schwar re FROG Motions, ¶¶17-19.)

Biane Plaintiffs seek \$2,760 in sanctions per SROG motion against Defendant and its counsel of record (= [3.2 hours for the motion] + [2.2 anticipated hours to review and reply to the opposition, and attend the hearing] at \$500/hour, plus \$60 filing fees).
(Schwar re SROG Motions, ¶¶15-17.)

Biane Plaintiffs seek \$3,010 in sanctions per RPD motion against Defendant and its counsel of record (= [3.5 hours for the motion] + [2.4 anticipated hours to review and reply to the opposition, and attend the hearing] at \$500/hour, plus \$60 filing fees).
(Schwar re RPD Motions, ¶¶16-18.)

Biane Plaintiffs seek \$2,310 in sanctions per RFA motion against Defendant and its counsel of record (= [2.4 hours for the motion] + [2.1 anticipated hours to review and reply to the opposition, and attend the hearing] at \$500/hour, plus \$60 filing fees).
(Schwar re RFA Motions, ¶¶15-17.)

The Court will award sanctions in favor of Biane Plaintiffs for bringing these motions, as these motions and the IDC prompted Defendant to provide supplemental responses on July 28, 2026 and verifications thereafter on September 4, 2026. However, the Court will reduce the requested sanctions awarded as the motions are essentially duplicative in form and only one appearance is necessary to attend the hearing.

The requests for sanctions are granted in the amount of \$1,060 per FROG and RFA motion (= [2 hours per FROG and RFA motion x \$500/hour] + \$60 filing fees) and \$1,560 per SROG and RPD motion (= [3 hours per SROG and RPD motion x \$500/hour] + \$60 filing fees).

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiffs Debra Biane and Gerald Biane's Motions to Compel Further Responses came on regularly for hearing on September 18, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

PLAINTIFFS DEBRA BIANE AND GERALD BIANE'S MOTIONS TO COMPEL DEFENDANT'S FURTHER RESPONSES TO: (1) FORM INTERROGATORIES, SET ONE; (2) SPECIAL INTERROGATORIES, SET ONE; (3) REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE; AND (4) REQUESTS FOR ADMISSION, SET ONE, ARE DENIED IN LIGHT OF DEFENDANT'S VERIFIED, SUPPLEMENTAL RESPONSES.

DEFENDANT IS ORDERED TO PAY MONETARY SANCTIONS IN THE AMOUNT OF \$5,240 TO PLAINTIFF DEBRA BIANE, BY AND THROUGH COUNSEL, WITHIN 30 DAYS OF THIS ORDER.

DEFENDANT IS ORDERED TO PAY MONETARY SANCTIONS IN THE AMOUNT OF \$5,240 TO PLAINTIFF GERALD BIANE, BY AND THROUGH COUNSEL, WITHIN 30 DAYS OF THIS ORDER.

PLAINTIFF DEBRA BIANE TO PROVIDE NOTICE.

IT IS SO ORDERED.